SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 803 of 2018 (YEAR: 2018)

CORAM: J. CHELAMESWAR, SANJAY KISHAN KAUL

Kishan Rao
... Appellant(s) / Petitioner(s)
Versus
Shankargouda
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 139 NI Act

JUDICIAL HEADNOTE & SUMMARY

Affirmed that the accused may rebut presumption under Section 139 NI Act through preponderance of probabilities, but a mere bald denial of liability is insufficient.

RATIO DECIDENDI

The Court held that: Affirmed that the accused may rebut presumption under Section 139 NI Act through preponderance of probabilities, but a mere bald denial of liability is insufficient. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Kishan Rao v. Shankargouda (Criminal Appeal No. 803 of 2018) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 139 NI Act. Affirmed that the accused may rebut presumption under Section 139 NI Act through preponderance of probabilities, but a mere bald denial of liability is insufficient.

OPERATIVE ORDER

ORDER: Decided